

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
AISHA REED

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
FRANK, 46^T PCT., SHIELD # UNKNOWN
INDIVIDUALLY AND AS A POLICE OFFICER,
POLICE OFFICER WALLACE, SHIELD
UNKNOWN, INDIVIDUALLY AND AS A POLICE
OFFICER, POLICE OFFICER JOHN DOE #1-#4
AND POLICE OFFICER JANE DOE,
IDENTITIES PRESENTLY UNKNOWN, EACH
INDIVIDUALLY AND AS A POLICE OFFICER,
Defendants.

-----X

**SUMMONS WITH
VERIFIED COMPLAINT**

Index No.:

Dated Purchased:

Plaintiff designates Bronx
County as the place of trial.
The basis of the venue is place
of occurrence

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve
a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of
appearance, on the Plaintiff's Attorney with twenty (20) days after the service of this summons,
exclusive of the day of service, (30) days after the service is complete, if the summons is not
personally delivered to you within the State of New York; and in case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
This 1st day of July, 2018


EMDIN & RUSSELL, LLP.
Jeffrey L. Emdin, Esq.

Attorneys for Plaintiff
499 Seventh Avenue, Floor 12N
New York, New York 10018
(212) 683-3995

Defendants address:

Corporation Counsel
Attorneys for the City of New York,
100 Church Street
New York, NY 10007

The New York City Police Department
1 Police Plaza
New York, New York 10038

Police Officer Frank
c/o 46th pct.
2120 Ryer Avenue
Bronx, NY 10457

Police Officer Wallace
c/o 46th pct.
2120 Ryer Avenue
Bronx, NY 10457

SUPREME COURT OF THE STATE OF NEW YORK
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The plaintiff, Aisha Reed, by her attorneys, Emdin & Russell, LLP complaining
of the defendants, respectfully shows to this court and alleges:

1. Upon information and belief that at all times hereinafter mentioned, the
defendant, the City of New York, hereinafter referred to as "City", was, and still is, a municipal
corporation duly organized and existing under, and by virtue of, the laws of the State of New
York.

2. Upon information and belief at all times hereinafter mentioned, the defendant, the
City of New York, hereinafter certified to as "City", its agents, servants and/or employees
operated, maintained and controlled the New York City Police Department hereinafter referred
to as "NYPD", including all the police officers and correction officers therein.

3. Upon information and belief, at all times hereinafter mentioned, and on the 22nd day of February, 2018 and the 9th day of March 2018, Police Officer Frank, Shield # unknown, hereinafter referred to as “Frank” was employed as a Police Officer by the “City” and/or “NYPD” and assigned to the 46th pct., and at all relevant times set forth below acted in the capacity of a police officer and within the scope of his employment.

4. Upon information and belief, at all times hereinafter mentioned, and on the 22nd day of February, 2018 and the 9th day of March 2018, Police Officer Wallace, Shield # unknown, hereinafter referred to as “Wallace” was employed as a Police Officer by the “City” and/or “NYPD” and assigned to the 46th pct., and at all relevant times set forth below acted in the capacity of a police officer and within the scope of his employment.

5. Upon information and belief, at all times hereinafter mentioned, and on the 22nd day of February, 2018 and/or the 9th day of March 2018, Police Officer John Doe #1-#4, Shield # unknown, hereinafter referred to as “John Does” were employed as Police Officers by the “City” and/or “NYPD” and assigned to the 46th pct., and at all relevant times set forth below acted in the capacity of a police officer and within the scope of his/their employment.

6. Upon information and belief, at all times hereinafter mentioned, and on the 22nd day of February, 2018 and/or the 9th day of March 2018, Police Officer Jane Doe, Shield # unknown, hereinafter referred to as “Jane Doe” was employed as a Police Officer by the “City” and/or “NYPD” and assigned to the 46th pct., and at all relevant times set forth below acted in the capacity of a police officer and within the scope of her employment.

7. Upon information and belief, at all relevant times mentioned within this Complaint the defendants, Frank, Wallace, John Does #1-#4 and Jane Doe, individually and/or

collectively were acting under and required to follow the New York City Police Patrol Guidelines and the laws of the State of New York and the United States of America

8. At all relevant times mentioned within this Complaint, the plaintiff Aisha Reed, hereinafter referred to as “Reed” was a resident of the State of New York, County of Bronx.

9. That on February 22, 2018, at approximately 10:00 p.m. the plaintiff was inside a cab parked in the vicinity of 182nd Street and Davidson Avenue in Bronx County, N.Y., hereinafter referred to as “location #1”.

10. At that time and location, New York City police officer(s), including upon information and belief Frank approached the vehicle in which the plaintiff was an occupant.

11. Frank opened the passenger door and ordered the plaintiff to exit. The livery driver confirmed to the officer that everything was ok and that the plaintiff had just paid the fare for the individual who had just exited the cab. He confirmed that he was going to then transport the plaintiff to a second location.

12. Meanwhile the individual who had just exited the livery vehicle, Julian Tumma, was stopped , grabbed by other officers and slammed over a hood of a car.

13. The claimant attempted to record what was transpiring, but Frank grabbed and confiscated the plaintiff’s cell phone.

14. The plaintiff was removed from the vehicle and searched (by a male officer, Frank) behind the vehicle. No contraband was found on the plaintiff’s person and she did not consent to the search of her person.

15. One of the officers took a bag that was in Tumma’s possession and then attempted to place it in the vehicle. The plaintiff was later arrested. At one point she was told that she was

being arrested on an outstanding warrant and at another point she was told that it was based on what was inside the bag.

16. Upon information and belief there was no outstanding warrant for the plaintiff's arrest.

17. The plaintiff had no knowledge, control over and was never in possession of the alleged "bag" and its contents, which according to the police contained a toy gun.

18. The defendant's actions prohibiting plaintiff from recording police conduct, including the location and subsequent placement of evidence attempted to deny the plaintiff of her right to a fair trial.

19. Upon information and belief the failure to record any information from the livery driver, including his pedigree information also denied the plaintiff her right to a fair trial and due process of the law.

20. The plaintiff was transported in handcuffs to the 46th pct. where she was again searched (in front of the desk officer and a more intrusive search was conducted in the holding cell bathroom) and placed in a locked holding cell.

21. The plaintiff was transported in handcuffs to Bronx Central Booking at approximately 5:00 am on February 23, 2018. The plaintiff was searched and placed in a locked holding cell where she was held until approximately 10:45 p.m..

22. On February 23, 2018 at approximately 10:45 p.m. the plaintiff was released from the holding cell and informed that her case had been dismissed. She never saw a judge.

23. Upon information and belief while the plaintiff was being held in custody police officers came to the plaintiff's home and attempted to forcibly gain entry unsuccessfully. Upon

information and belief the officers questioned a neighbor about the “dyke” that lives in the apartment. The officers left marks on the plaintiff’s front door.

24. On March 9, 2018 at approximately 9:00 p.m. the plaintiff was home at 1490 Boston Rd apt 4n, Bronx, N.Y., hereinafter referred to as “location 2”, when there was banging on her front door.

25. Soon thereafter there was another knock at the door and a plainclothes officer asked her to lower the music. When the claimant attempted to close the door, Wallace pushed through followed by Frank and other officers.

26. Frank had his weapon out and pointed at the plaintiff’s friend and her young son. Wallace claimed he had a warrant.

27. The plaintiff was removed from her apartment and placed in the hallway while officers searched her apartment.

28. Upon information and belief the warrant authorized the police to seize the following property: firearms and evidence tending to establish ownership of the premises and connect persons found therein the premises, to wit: personal papers and effects.

29. Upon information and belief said search warrant was secured based upon knowingly false, misleading and unreliable information presented to the issuing judge.

30. There were no firearms found within the premises.

31. An officer stated that we are not leaving here empty handed.

32. An officer threatened to call the plaintiff’s job and “tell them what you are doing”. The officer told the plaintiff that her

33. The officers gave the plaintiff a summons for a small trace of marijuana allegedly

found in an ashtray.

34. There was property damage in the plaintiff's apartment caused during the search.

35. After the search the plaintiff found that \$100.00 was missing from her apartment.

36. That notice of the plaintiff's claim and notice of intention to sue for damages, the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose were duly served upon the comptroller of the defendant "City".

37. That a 50(h) hearing was held on June 27, 2017.

38. That more than 30 days have elapsed since the notice of claim and intention to sue has been served upon the defendants and the said defendants have neglected or refused to make any adjustment or payment thereof.

39. That this action is commenced within one year and 90 days after the cause of action arose.

40. It is hereby alleged, pursuant to CPLR 1603, that this action is exempt from the operation of CPLR 1601 from the operation of CPLR 1601, by reason of one or more of the exemptions provided in CPLR 1602.

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF
OF PLAINTIFF OR FALSE IMPRISONMENT**

41. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "40" with the same force and effect as if more fully and at length set forth herein.

42. That beginning on or about the 22nd day of February, 2018, at or about approximately 10:00 p.m. at or near the "location #1" until the plaintiff's release on or about

February 23, 2018 at approximately 10:45 p.m., the defendants, their agents, servants and/or employees detained and imprisoned plaintiff without any just cause or grounds.

43. That said imprisonment was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, or cause to believe that the plaintiff was guilty of any crime.

44. The plaintiff was wholly innocent of all criminal charges and did not contribute in any way or manner to her arrest and imprisonment by the defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against her will.

45. That the defendants, their agents, servants and/or employees, as set forth above, intended to confine the plaintiff; the plaintiff was conscious of the confinement; she did not consent to the confinement; and the confinement was not otherwise privileged

46. That by reason of the aforesaid false imprisonment and detention, plaintiff was subjected to great indignity, humiliation, loss of work and loss of freedom and the said plaintiff has been otherwise damaged.

47. That by reason of the aforesaid, the plaintiff has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF
OF PLAINTIFF OR FALSE IMPRISONMENT**

48. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "47" with the same force and effect as if more fully and at

length set forth herein.

49. That beginning on or about the 9TH day of March, 2018, at or about approximately 9:00 p.m. at or near the "location #2" until the plaintiff's release on or about March 9, 2018 at approximately 10:00 p.m., the defendants, their agents, servants and/or employees detained and imprisoned plaintiff without any just cause or grounds.

50. That said imprisonment was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, or cause to believe that the plaintiff was guilty of any crime.

51. The plaintiff was wholly innocent of all criminal charges and did not contribute in any way or manner to her arrest and imprisonment by the defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against her will.

52. That the defendants, their agents, servants and/or employees, as set forth above, intended to confine the plaintiff; the plaintiff was conscious of the confinement; she did not consent to the confinement; and the confinement was not otherwise privileged

53. That by reason of the aforesaid false imprisonment and detention, plaintiff was subjected to great indignity and humiliation, loss of work and loss of freedom and the said plaintiff has been otherwise damaged.

54. That by reason of the aforesaid, the plaintiff has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF
OF PLAINTIFF FOR FALSE ARREST**

55. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "54" with the same force and effect as if more fully and at length set forth herein.

56. That beginning on or about the 22ND day of February, 2018, at or about approximately 10:00 p.m. at "location #1", the plaintiff was handcuffed and placed under arrest by the defendants, their agents, servants and/or employees without any just cause or ground therefor, and held against her will under full force of arms..

57. That said arrest was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, and based on an illegal stop and search of the plaintiff when the defendants lacked cause to believe that the plaintiff committed, or was about to commit a crime or was guilty of any crime.

58. The plaintiff was wholly innocent of all criminal charges and did not contribute in any way or manner to her arrest and imprisonment by the defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against her will.

59. That the defendants, their agents, servants and/or employees, as set forth above, intended to seize, search, and arrest the plaintiff; that the plaintiff was conscious of the arrest and confinement; the Plaintiff did not consent to the arrest and confinement; and the arrest was not otherwise privileged.

60. That by reason of the aforesaid false arrest, plaintiff was subjected to great indignity, humiliation, stress and loss of freedom and the said plaintiff has been otherwise damaged.

61. That by reason of the aforesaid, the plaintiff has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

AS AND FOR A FOURTH CAUSE OF
ACTION ON BEHALF OF THE PLAINTIFF
FOR ASSAULT AND BATTERY

62. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "61" with the same force and affect as if more fully and at length set forth herein.

63. On February 22, 2018 at location # 1 and continuing until The plaintiff was seized, searched, searched by a male officer, strip searched, held, handcuffed, and threatened by the defendant, "City", and the "NYPD" its agents/servants, and/or employees, including the named officers herein.

64. That all said contact was committed without the plaintiff's permission or consent.

65. That all said contact was unlawful and without privilege.

66. That all contact committed by defendants through their agents, servants, and/or employees, including the defendant "officers" and was offensive to plaintiff and caused her to fear further contact and imminent harm, and caused plaintiff to sustain physical and/or psychological injury.

67. That the above acts committed by the defendants constituted an assault and/or battery of the plaintiff.

68. That by reason of the aforesaid, the plaintiff, has been damaged in a sum exceeding the jurisdictional limits of lower courts.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF FOR NEGLIGENCE AGAINST
THE CITY OF NEW YORK

69. The plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "68" with the same force and affect as if more fully and at length set forth herein.

70. That the defendant, "City" was careless and reckless in hiring, retaining, training, supervising and promoting as and for its employees, defendants "Frank", "Wallace", and the unknown John and Jane Does, in that said employee(s) lacked the experience, deportment and ability to be employed by the defendant City in the capacity in which they were utilized, i.e. as police officers; in that the defendant, "City" failed to exercise due care and caution in its hiring and promoting practices; in that the defendant "City" failed to investigate the above named employee's backgrounds; in that the City failed to properly train, supervise and monitor the 'officers; and in that that the defendant City was negligent in disciplining, retraining, retaining and assigning the named defendant officers;' and in that the defendants, their agents, servants and employees, were otherwise careless, negligent and reckless.

71. That defendants "officers" while acting within the scope of their employment, were negligent in that each failed to use such care in the performance of his police duties as a reasonably prudent and careful police officer would have used under similar circumstances; in that each was negligent, careless and reckless in the manner in which they investigated and/or performed his or her police duties; in that the police department permitted or condoned the

illegal and improper search and seizure, failure to document search and seizure, providing false or misleading information in support of search warrants, retaliation for attempting to videotape police conduct, false arrest, and/or false documentation submitted by these and other officers; and in that the defendants, their agents, servants, and/or employees were otherwise careless, reckless and negligent.

72. That the aforesaid occurrence, to wit: assault and battery, false arrest and imprisonment, and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the defendants, its agents, servants and/or employees including defendants "officers" without any negligence on the part of the plaintiff contributing thereto.

73. That by reason of the aforesaid, the plaintiff was imprisoned, lost her freedom, lost wages, had property damaged, and was physically and emotionally injured and he was thereby damaged.

74. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court.

AS AND FOR A SIXTH CAUSE OF ACTION:
FOR VIOLATION OF PERSONAL CONSTITUTIONAL
RIGHTS UNDER 42 U.S.C. 1983 AGAINST
THE CITY OF NEW YORK

75. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "74" with the same force and effect as if more fully and at length set forth herein.

76. That upon information and belief the defendant City on February 22, 2018 and

March 9, 2018, were on notice of the customs, practices and conduct of the named defendant officers Frank and Wallace and members of the 46th pct, which included but were not limited to illegal search and seizure, retaliation against videotaping police encounters, suppressing evidence and thereby denying citizens the right to a fair trial and due process of the law, planting evidence, filing false reports, failing to identify, stop and report police misconduct, filing and swearing to a false affidavit, destruction of property, stealing property, threats, and acts of dishonesty and lack of integrity and were deliberately indifferent thereto.

77. As set forth above, on February 22, 2018 at location #1 the Plaintiff was lawfully and properly thereat, when the “officers” acting as agents, servants and/or employees of the defendant “City”, forcibly stopped, seized and searched the plaintiff, removed the plaintiff from a vehicle, attempted to plant evidence, and arrested plaintiff absent just cause, provocation or reason.

78. Upon information and belief on March 8, 2018 the defendants presented a justice a criminal court of the city of New York with false, misleading and unreliable facts/evidence in support of a search warrant for the plaintiff’s home (location #2) for a weapon that was not, nor ever was present in the home.

79. In Between February 22, 2018 and March 8, 2018 the defendant officers attempted to gain entry into the plaintiff’s home absent a warrant and referred to plaintiff as a “dyke”.

80. Upon information and belief the defendant officers entered the plaintiff’s home on March 9, 2018 to execute a warrant, and proceeded to destroy property and remove property therefrom and threatened the plaintiff that she would continue to be the subject of their attention

unless she cooperated and gave them “information”.

81. That all acts committed by “the officers” and other agents servants, employees and/or agents of the defendant “City” were committed within the scope of their employment and under color of law..

82. That said acts constituted an illegal seizure of the plaintiff and deprived plaintiff of her rights and liberties as set forth in the Constitutions of the United States and of the State of New York and under 42 U.S.C. Section 1983 and/or 1986.

83. Defendants actions were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York, and they were performed to the detriment of the plaintiff.

84. That plaintiff did not commit any illegal act, either before or at the time she was seized, searched, threatened, falsely arrested and imprisoned, assaulted, battered, and deprived of her constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

85. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks punitive damages, costs, attorneys fees, and expert fees as provided by 42 U.S.C. Section 1988, and such other relief as to the court may seem just and proper.

AS AND FOR A SEVENTH CAUSE OF ACTION:
ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTION 1983, BY POLICE OFFICER FRANK, POLICE OFFICER
WALLACE AND POLICE OFFICER JOHN DOES #1-#4 AND JANE DOE , IN THEIR
INDIVIDUAL CAPACITIES AND AS AGENTS OF THE CITY OF NEW YORK, THE
PLAINTIFF ALLEGES:

86. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "85" with the same force and effect as if more fully and at length set forth herein.

87. That at all times hereinabove and hereinafter mentioned, the defendant "Frank" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

88. That at all times hereinabove and hereinafter mentioned, the defendant "Wallace" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

89. That at all times hereinafter mentioned, the defendants "John Does #1-#4" were employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York

90. That at all times hereinafter mentioned, the defendant "Jane Doe" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and her acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

91. That at all times hereinafter mentioned, the defendant officers, individually and

collectively, were acting pursuant to orders and directives from defendant, The City of New York.

92. That during all times hereinafter mentioned, the defendants “officers”, individually, and/or collectively acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, and engaged in the illegal conduct set forth this complaint to the injury of the plaintiff, and deprived her of the rights, privileges and immunities secured to her by the First, Fourth, and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1983 and 1986.

93. That the unlawful and illegal conduct of defendants “officers” deprived plaintiff of the following rights, privileges and immunities secured to her by the Constitution of the United States and of the State of New York:

- a) The right of plaintiff to be secure in her person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States; and,
- b) The right not to be discriminated against based upon the plaintiff’s race, creed, sex, or sexual orientation.
- c) The right to Due Process Law.
- d) The right to equal protection under the law.
- e) The right to freedom of speech
- f) The right to a fair trial
- g) The right not to be deprived of property

94. That by reason of the aforesaid violations, as well as the use of force, seizure of plaintiff's person, search of plaintiff's person and property; her false arrest and false imprisonment, assault and battery, falsifying evidence, signing a false statement, retaliation, suppression of evidence, maliciously destroying property, confiscating and taking property for their own benefit, threats and intimidation, said defendant Police "Officers" violated plaintiff's rights and privileges as provided to her in the Constitution of the United States of America, and provided to her in the Constitution of the State of New York, and laws thereto, "the officers" individually and collectively violated 42 U.S.C. §1983.

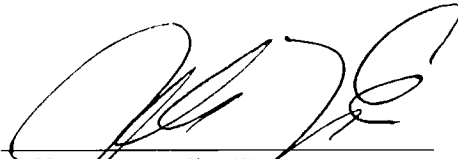
95. That as a direct proximate result of "the officers" actions plaintiff was subjected to great indignities and humiliation, imprisonment, lost wages, pain and distress of mind and body and was humiliated and defamed thereby.

96. That by reason of the aforesaid, plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain.

97. That by reason of the aforesaid, the plaintiff has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Section 1988, and such other relief as to the court may seem just and proper.

WHEREFORE, the plaintiffs demand judgment against the defendants in a sum to be determined by the trier of fact, plus costs, attorney's fees, punitive damages and such other and further relief as to the Court seems just and proper on the First through the Seventh causes of action.

DATED: New York, New York
July 18, 2018



Jeffrey L. Emdin, Esq.,
Emdin & Russell, LLP.
Attorneys for the plaintiff
499 Seventh Avenue, Floor 12N
New York, New York 10018
(212) 683-3995

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

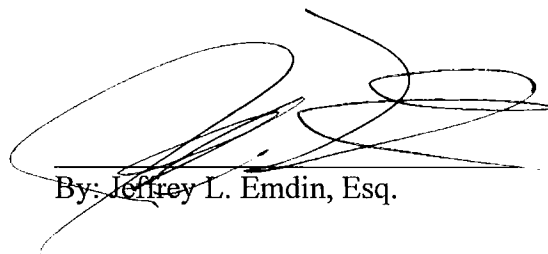
That I am an attorney associated with the law firm of Jeffrey L. Emdin, Esq., the attorneys of record for the Plaintiff in the within action; that I have read the foregoing Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Amended Complaint is made by me and not by the Plaintiff is that the Plaintiff do not reside within the county in which my office is located.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiff and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
July 18, 2018



By: Jeffrey L. Emdin, Esq.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

AISHA REED,

Plaintiff,

-against-

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OFFICER, POLICE OFFICER WALLACE, SHIELD UNKNOWN, INDIVIDUALLY AND AS
A POLICE OFFICER, POLICE OFFICER JOHN DOE #1-#4 AND POLICE OFFICER JANE
DOE, IDENTITIES PRESENTLY UNKNOWN, EACH INDIVIDUALLY AND AS A POLICE
OFFICER,Defendants.

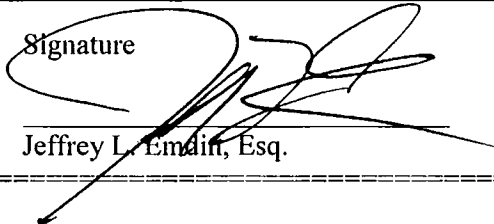
SUMMONS AND COMPLAINT

LAW OFFICES OF EMDIN & RUSSELL, LLP
Attorneys for Plaintiff
499 Seventh Avenue, Floor 12N
New York, New York 10018
(212) 683-3995To: City of New York
c/o Corporation Counsel,
100 Church Street
New York, New York 10007Police Officer Frank
c/o 46th Precinct
2120 Ryer Avenue
Bronx, NY 10457Police Officer Wallace
c/o 46th Precinct
2120 Ryer Avenue
Bronx, NY 10457New York City Police Department
1 Police Plaza
New York, NY 10038

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New
York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained
in the annexed document are not frivolous.

Dated: July 18, 2018

Signature


Jeffrey L. Emdin, Esq.

PLEASE TAKE NOTICE

- ☐ NOTICE OF ENTRY
that the within is a (certified) true copy of a duly entered in the office of the
clerk of the within named court on
- ☐ NOTICE OF SETTLEMENT
that a of which the within is a true copy
will be presented for settlement to the HON. one of the judges of the, on